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2018 CA 000543

UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

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ESCAMBIA COUNTY, FL

DEEPGULF INC and TOKE OIL AND
GAS S.A.,

Plaintiffs,

v.

Case No. 3:18-cv-1466-MCR/MJF

MARC M. MOSZKOWSKI,

Defendant.

ORDER

This cause is before the court on Defendant's "Renewed Motion for Protective Order" and memorandum, (Docs. 78, 79), and the Plaintiffs' response thereto (Doc. 81). For the reasons set forth below, this motion will be denied.

I. Procedural History

The background of this case was discussed in the undersigned's previous order regarding Plaintiffs' motion to compel Defendant (Doc. 42). In short, Plaintiffs allege breach of a non-competition agreement, civil theft, and fraudulent misrepresentation. On April 15, 2019, the Defendant filed an amended answer to the complaint asserting counterclaims against the Plaintiffs. (Doc. 70). Defendant asserts the following claims: (1) Accounting; (2) Breach of contract; (3) Work and

Labor Done; (4) Breach of Contract; (5) Fraud Based on Promise to Pay; and (6) Fraudulent Misrepresentation. (*Id.*).

On December 17, 2018, Plaintiffs filed a motion to compel Defendant to appear personally at deposition and mediation. (Doc. 31). The undersigned denied the motion to compel as premature. (*See* Doc. 42 at 6). On March 8, 2019, the Defendant filed a motion for a protective order to protect him from being deposed on March 15, 2019, in Pensacola, Florida. (Doc. 52). The undersigned conducted a telephonic hearing and both parties represented that an agreement likely was forthcoming. (Doc. 66). The undersigned, therefore, denied the motion for a protective order as moot. (Doc. 67).

On March 29, 2019, counsel for Plaintiffs and Defendants filed their “Joint Motion to Extend Date in Final Scheduling Order.” Both parties submitted to the court that “Defendant shall be deposed in the Northern District of Florida, in person, absent unforeseen circumstances on or before 30 July 2019.” (Doc. 68). On April 4, 2019, United States District Judge M. Casey Rodgers granted the motion. (Doc. 69). On June 14, 2019, Defendant renewed his motion for a protective order and stated that he is unable to travel to the United States for the deposition due to a medical condition.

On July 3, 2019, the undersigned held a hearing on Defendant's motion. At the hearing, Defendant's counsel stated that, given the choice between Defendant traveling to the Northern District of Florida for the deposition or paying for Plaintiffs' counsel travel to Nice, France, Defendant preferred the former. Additionally, both parties agreed that there are a significant number of documents that Plaintiffs' counsel likely will use in Defendant's deposition.

II. Standard

"[T]he purpose of discovery is to provide a mechanism for making relevant information available to the litigants." *Lozan v. Maryland Cas. Co.*, 850 F.2d 1470, 1473 (11th Cir. 1988) (citing Fed. R. Civ. P. 26 advisory committee notes). "Mutual knowledge of all the relevant facts gathered by both parties is essential to proper litigation. To that end, either party may compel the other to disgorge whatever facts he has in his possession." *Hickman v. Taylor*, 329 U.S. 495, 507, 67 S. Ct. 385, 392 (1947). Rules favoring broad discovery help "make a trial less a game of blind man's bluff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent." *United States v. Procter & Gamble Co.*, 356 U.S. 677, 682, 78 S. Ct. 983, 986-87 (1958).

Consistent with these policies, Rule 30(a) of the Federal Rules of Civil Procedure authorizes parties to depose witnesses, including an opposing party. *See*

Fed. R. Civ. P. 30(a). Depositions can be extremely important to the discovery of relevant facts and the acquisition of key admissions from parties or witnesses. In some cases, depositions are “indispensable.” *Mill-Run Tours, Inc. v. Khashoggi*, 124 F.R.D. 547, 549 (S.D.N.Y. 1989).

“Each party to a civil law suit has the right to take depositions of the other party, absent a protective order entered by the trial judge.” *Colonial Times, Inc. v. Gasch*, 509 F.2d 517, 521 (D.C. Cir. 1975); *see Jules Jordan Video, Inc. v. 144942 Canada Inc.*, 617 F.3d 1146, 1158 (9th Cir. 2010) (observing that “under Rule 30 any person’s testimony may be taken by deposition”); *Nat’l Life Ins. Co. v. Hartford Acc. & Indem. Co.*, 615 F.2d 595, 599 (3d Cir. 1980) (“The Federal Rules of Civil Procedure specifically give a party the right to question a witness by oral deposition.”). Under Rule 26, upon a showing of good cause, the court may limit discovery by entry of a protective order “to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense.” Fed. R. Civ. P. 26(c).

“While Rule 26(c) articulates a single standard for ruling on a motion for protective order, that of ‘good cause,’ the federal courts have superimposed a somewhat more demanding balancing of interests approach to the Rule.” *Farnsworth v. Proctor & Gamble Co.*, 758 F.2d 1545, 1547 (11th Cir. 1985) (citations omitted). The burden is upon the movant to show that a protective order is

necessary, which requires a “particular and specific demonstration of fact as distinguished from stereotyped and conclusory statements.” *United States v. Garrett*, 571 F.2d 1323, 1326 n.3 (5th Cir. 1978) (citations omitted).

III. Discussion

The Federal Rules of Civil Procedure do not mandate a situs for a deposition; however, as discussed in the undersigned’s previous order, there are several presumptions that apply. (*See* Doc. 42 at 6-24). Here, the presumptions weigh in favor of deposing Defendant in the Northern District of Florida because Defendant is a “plaintiff” for the purpose of his counterclaims and he is or was an officer, director, and founder of DeepGulf, Inc. *See Buzzeo v. Bd. of Educ., Hempstead*, 178 F.R.D. 390, 392 (E.D.N.Y. 1998) (quoting 7 Moore’s Federal Practice—Civil § 30.20) (“As a general rule, ‘the party noticing the deposition usually has the right to choose the location’”); *Culhane v. MSC Cruises (USA), Inc.*, 290 F.R.D. 565, 566 (S.D. Fla. 2013) (noting that the “Plaintiff in an action should expect to be deposed in the forum where the action is pending.”); *Levick v. Steiner Transocean, Ltd.*, 228 F.R.D. 671, 672 (S.D. Fla. 2005) (The general rule is that a plaintiff who brings suit in a particular forum may not avoid appearing for examination in that forum.”); *Salter v. Upjohn Co.*, 593 F.2d 649, 651 (5th Cir. 1979) (holding that there is a presumption that the deposition of an officer of a corporation will take place at

the corporation's principal place of business). But these presumptions can be overcome by a showing good cause. *See* Fed. R. Civ. P. 26.

"While Rule 26(c) articulates a single standard for ruling on a protective order motion, that of "good cause," the federal courts have superimposed a somewhat more demanding balancing of interests approach to the Rule." *Farnsworth v. Procter & Gamble Co.*, 758 F.2d 1545, 1547 (11th Cir. 1985). Thus, a district court "should balance the non-moving party's interest in obtaining discovery and preparing for trial against the moving party's proffer of harm that would result." *Culhane v. MSC Cruises (USA), Inc.*, 290 F.R.D. 565, 566 (S.D. Fla. 2013).

Ultimately, however, "the district court has great discretion in designating the location of taking a deposition." *Thompson v. Sun Oil, Co.*, 523 F.2d 647, 648 (8th Cir. 1975) (per curiam); *see Afram Export Corp.*, 772 F.2d at 1365 (noting a district court's broad discretion to set the location of a deposition); *Asea, Inc. v. S. Pac. Transp. Co.*, 669 F.2d 1242, 1248 (9th Cir. 1981) (holding that a "district judge has discretion to direct the place of a deposition"); *Armsey v. Medshares Mgmt. Servs., Inc.*, 184 F.R.D. 569, 571 (W.D. Va. 1998) (noting that a district court enjoys "broad discretion to determine the appropriate location for a deposition").

In determining that the Defendant should be deposed in the Northern District of Florida, the undersigned considered the relevant factors outlined in this court's

previous order. For the sake of brevity, this court will discuss only a few of those factors below.

(1) Defendant's medical condition. Defendant stated that he “developed a severe medical condition” that requires surgery. Notably, Defendant indicated that he had the same condition prior to filing the joint notice of stipulation with United States District Judge M. Casey Rodgers. (Doc. 33 at 10). As of the date of the hearing on this matter, Defendant was still scheduled to undergo surgery for his medical condition in either late October or early November. Defendant provided a translated note from a French physician stating that “an extended flight of several hours is ill-advised.”¹

Importantly, the physician's note does not state why a prolonged flight would be ill-advised. It also does not state whether any accommodations might permit Defendant to fly to the United States. The note also does not indicate that Defendant's health would be endangered if he flew to the United States. The note, therefore, is insufficient to demonstrate good cause for entry of a protective order. *See Culhane v. MSC Cruises (USA), Inc.*, 290 F.R.D. 565, 566 (S.D. Fla. 2013) (“The party seeking protection has the burden of demonstrative good cause by making a

¹ The translation is not certified. The court will assume—for the purpose of this order—that the translation provided by Defendant is correct.

particular and specific demonstration of fact, as opposed to stereotyped or conclusory assertions.”).

(2) The location and convenience of the attorneys for the parties and for the deponent. Although the convenience of the location for the attorneys is secondary to the convenience of the parties, the undersigned notes that the attorneys for the Plaintiffs are located in the Northern District of Florida. *See Mill-Run Tours, Inc. v. Khashoggi*, 124 F.R.D. 547, 551 (S.D.N.Y. 1989) (noting that the convenience of the attorneys is “less important than any hardship on the parties”). Similarly, the attorneys for the Defendants are located in the Southern District of Alabama. Thus, a deposition in the Northern District of Florida would be more convenient for the attorneys for both parties than the attorneys traveling to Nice, France, to depose Defendant.

(3) The inconvenience posed by a particular site (for example, if a large number of documents would need to be transported to the location). In the present case, the Defendant acknowledged that there are a large number of documents that are involved in this dispute and which will be used during Defendant’s deposition. The burden of transporting a large number of documents from the United States to France strongly weighs against conducting Defendant’s deposition in France.

(4) **Whether a particular location would prove more efficient or would result in a more expeditious resolution of the case.** In addition to obviating the need to transport a large number of documents to France (as well as the attorneys), deposing Defendant in the Northern District of Florida also would facilitate mediation. The parties noted that a date for mediation had not been finalized, but it easily could occur within days of Defendant's deposition. Accordingly, conducting Defendant's deposition in the Northern District would entail substantial efficiencies that a deposition in France would not.

IV. Conclusion

Based on the factors outlined in this court's previous order, the undersigned concludes that the Defendant has not shown good cause for a protective order. Accordingly, it is **ORDERED**:

1. Defendant's Renewed Motion for Protective Order (Doc. 78) is **DENIED**.
2. On **July 17, 2019**, Defendant shall appear for a deposition in the Northern District of Florida.

SO ORDERED this 5th day of July, 2019.

/s/ Michael J. Frank
Michael J. Frank
United States Magistrate Judge